

SEPARATE OPINION BY JONKHEER VAN EYSINGA.

[Translation.]

I have been led to the same conclusion as the Court's judgment, but by a somewhat longer road.

The view set forth in the judgment to the effect that the territories of Crete, including the adjacent islets, and of Samos were detached from the Ottoman Empire after the Balkan wars agrees with my own opinion.

On the other hand, I consider that the period at which the territories in question became detached from the Ottoman Empire is not the only question which the Court has to decide.

Admitting that the territories of Crete including the adjacent islets and of Samos were detached from the Ottoman Empire after the Balkan wars, the question on which the Special Agreement seeks for a decision may be stated as follows: "Whether the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the '*Administration générale des Phares de l'Empire ottoman*', and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete, including the adjacent islets, and of Samos, which were *detached from the Ottoman Empire* and assigned to Greece after the Balkan wars."

The Court has, therefore, to ask itself whether the contract of April 1st/14th, 1913, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns the lighthouses in Crete and Samos.

That question cannot be decided by declaring that, since Crete and Samos were detached from the Ottoman Empire after the Balkan wars, Article 9 of Protocol XII of Lausanne of 1923 applies to these territories, and that, in consequence, Greece is subrogated as regards the rights and obligations arising for Turkey out of the concessionary contract of April 1st/14th, 1913, in so far as concerns lighthouses situated in the two islands. For, according to the judgment of 1934, Article 9 of Protocol XII of Lausanne "naturally presumes that the concessionary contracts in question are valid contracts" and, therefore, duly entered into (p. 25).

Accordingly, whether the question is regarded from the standpoint of the text of the Special Agreement or of the judgment of 1934, the Court is still called upon to decide whether the contract of April 1st/14th, 1913, was duly entered into in so far as concerns the lighthouses in the two islands.

In this connection, it should be noted that the Special Agreement regards the issue submitted to the Court as a question of the applicability of the principle adopted by the judgment of 1934 to the lighthouses in Crete and Samos.

That judgment had decided that the contract of April 1st/14th, 1913, was duly entered into and was accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories assigned to it after the Balkan wars or subsequently. The Court had reached that decision by founding itself on the general constitutional law of the Ottoman Empire, but it had not expressed its opinion as to whether this general constitutional law was really operative in all the territories detached from the Ottoman Empire and assigned to Greece after the Balkan wars. It was, *inter alia*, to the possibility that this might not be the case as regards certain territories, that the reservation made in the Court's judgment of 1934 had referred; the "questions of fact and of law" which the Court reserved in 1934 have now to be decided in so far as concerns Crete and Samos. For it might be found that the autonomous authorities in the two islands were alone competent to conclude a concessionary contract therein for the lighthouses owing, precisely, to the international status of wide autonomy enjoyed by these islands. Whether or not the Parties expressed an opinion on this point, the Court is obliged to do so both in virtue of the Special Agreement and of the judgment of 1934.

The view set forth above in no way invalidates the principle laid down in the judgment of 1934, a principle about which the Court is now called upon to declare whether it is applicable to the islands of Crete and Samos. So far as concerns all the other territories detached from Turkey and assigned to Greece after the Balkan wars, the judgment of 1934 has decided, without reservation, that the contract of April 1st/14th, 1913, was duly entered into and is accordingly operative in regard to the Greek Government. And indeed in regard to all these other territories Greece accepts the principle laid down by the judgment of 1934. Only in regard to Crete and Samos, territories which enjoyed a special international status and which had already been the subject of the reservation preceding the operative clause of the judgment of 1934, did the question arise whether the contract of April 1st/14th, 1913, was duly entered into and was accordingly operative in regard to the Greek Government.

I consider that this question should be answered in the affirmative, for the reasons which follow.

The administration of lighthouses is a service which in most States belongs to their domestic jurisdiction.

But there are cases in which, on the one hand, lighthouses are imperatively demanded in the interest of international

navigation, while, on the other hand, the State in whose territory the lighthouse would have to be operated, is not in a position to provide for its administration and maintenance. As a result of this situation, it sometimes happens that the Maritime Powers come to an agreement with the territorial State in regard to the operating of a lighthouse. A classic example is the light on Cape Spartel which marks the entrance to the Mediterranean for ships coming from the Atlantic; the operation of that light was regulated under a Convention concluded at Tangiers in 1865 between the Maritime Powers and Morocco.

The case of the lighthouses in the Ottoman Empire offers certain analogies. It was after the Crimean War, when the navies of the Western Powers had had ample occasion to note the lack of an adequate lighting system on the Ottoman coasts, that an international commission was appointed to consider the problem. The Turkish lighthouse service dates from 1856; and it was in 1860 that MM. Collas and Michel undertook the service in virtue of the concessionary contract of August 8th/20th of that year.

The lighthouse service covers the whole of the Ottoman Empire, except in so far as certain parts of that Empire are excepted from it. Here we have a case of an "Imperial interest" which was primarily a matter of concern to international shipping. The Powers, and especially Great Britain, gave the Sultan many proofs of their keen and persistent interest in the matter, and on more than one occasion made it the subject of diplomatic representations. This international interest was not governed by any regulation, but the Sultan recognized that it was an international interest of a very real character (see Young, "*Corps de Droit ottoman*", 1905, III, pp. 104 *et seq.*).

We see here one of the numerous examples of the interest displayed by foreign Powers in the affairs of the Ottoman Empire. Better known instances are afforded by the management of Public Hygiene, of the Public Debt, the régime of the Mouths of the Danube and the treatment of foreigners in general, matters which have in many cases been regulated in a more formal manner. The international interest thus continuously manifested tended to preserve the character as "Imperial interest" of all these services for which the Sublime Porte itself had to support the responsibility.

For the rest, there is nothing to show that the administration of the lighthouses was delegated to the autonomous territories of Crete and Samos. In order to demonstrate the contrary, it has been sought to rely on Article 30 of the Constitution of Crete of 1899 and on Article 36 of the Constitution of 1907. It is laid down in those Articles that the Prince (the High

Commissioner) concludes conventions, for which he demands the vote of the Chamber. I cannot help thinking that the place occupied by this clause in the Cretan Constitution shows that it had in view conventions, in the sense of treaties between States, and not internal conventions of private law or of administrative law. But even if it were otherwise, the very wide autonomy enjoyed by Crete was subordinated by the terms of Article 1 of the Constitutions of 1899 and of 1907 to the conditions established by the four Great Powers. But it is common ground that the maintenance of the Sultan's legitimate rights formed one of those conditions (see the *pro memoria* of the Great Powers delivered to Prince George on March 28th, 1899, French Memorial, p. 38).

If there is any one sphere in which the protecting Powers insistently maintained the Sultan's rights in the island of Crete, it was that of the lighthouses. At the very outset, the Cretan Government had raised the question of the lighthouse dues (Greek Counter-Memorial, p. 25). Though recognizing the concession extended in 1894, the Cretan Government demanded that the share of the revenues due to the conceding Government should be paid to itself and not to the Ottoman Government. The protecting Powers never admitted these claims. On the contrary, they persisted in recognizing the Sultan as the competent authority in lighthouse questions in regard to the island of Crete also. It was to the Imperial Ottoman Government that the protecting Powers addressed themselves on September 15th, 1911, when there was a demand for additional lighthouses in Crete (French Memorial, p. 23); and the refusal with which the Cretan Government's claim was met on May 10th, 1912, in the matter of the lighthouse dues, is decisive (Greek Counter-Memorial, p. 29).

It appears to me that the French Agent was right when he stated on June 29th last that the Sultan continued to be the supreme head of the lighthouse service, which is not a local public service, but is really an Imperial public service (oral pleadings, p. 46). This was the case as regards Crete up to the very end, and there is nothing to show that it was otherwise in regard to Samos.

For the rest, it is not surprising, when a maritime country undergoes an evolution in the direction of decentralization—whether that evolution takes the form of shocks or of “peaceful change”—that it should be on the maritime coasts that the power of the former central government continues longest to subsist, in the territories that have become autonomous. Many examples of this might be cited. I will merely recall that in the Treaty regulating the constitutional position of the Irish Free State, signed in London on December 6th, 1921, between the British Government and Ireland, the former Government

reserved for itself very important rights in regard to lighthouses in the Free State.

It follows from the foregoing that the contract of April 1st/14th, 1913, extending the concession to September 4th, 1949, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete, including the adjacent islets, and of Samos, which were detached from the Ottoman Empire and assigned to Greece after the Balkan wars.

(Signed) v. EYSINGA.